



Kenya National Commission on Human Rights

Frequently Asked Questions (FAQs) on the Kenya National Commission on Human Rights (KNCHR) Role in Compensation and Reparations to Victims of Human Rights Violations

*This document addresses key **Frequently Asked Questions** from stakeholders regarding the Kenya National Commission on Human Rights' role and assignment in developing a framework for compensation and reparations to victims of human rights violations.*

1. Why is KNCHR leading this reparations process?

The KNCHR is leading this process due to its constitutional mandate under Article 59 of the Constitution and the KNCHR Act, 2011, which was affirmed by a landmark High Court Judgment in Kerugoya (Petition E010 of 2025 - consolidated) delivered on December 4, 2025. Additionally, a Proclamation and Gazette Notice issued by H.E. the President on March 6, 2026, pursuant to Article 254(2) of the Constitution, specifically required KNCHR to submit a report containing a Framework for Compensation and Reparations within sixty days.

2. What exactly is the "Framework for Compensation and Reparations to Victims of Human Rights Violations"?

The Framework is a comprehensive guide being developed by KNCHR to ensure a transparent, accountable, and comprehensive reparations process for victims of human rights violations. It will outline the mechanisms, criteria, and forms of reparations to be provided. The KNCHR is currently developing a Reparations Framework and Bill.

3. Is this Framework only for recent protests or also for historical violations? Which years or events are covered?

The Framework is intended to cover all victims of gross human rights violations and serious violations of international human rights law, including those from recent protests and demonstrations.

4. What then are serious gross human rights violations?

While all human rights violations are entitled to a remedy, reparations focusses on the systemic, grave, cruel, and severe nature of the violations. A gross human rights violation is severe in impact, is widespread or systematic, and violates non-derogable rights. These include extrajudicial killings, torture, cruel, inhuman or degrading treatment or punishment, enforced disappearances, arbitrary detention, sexual and gender based violence, systemic discrimination, among others.

5. What kinds of reparations are being considered, beyond cash compensation, and how will amounts be decided?

Reparations may include compensation (money), restitution (restoring rights or status where possible), rehabilitation (medical and psychosocial support), satisfaction (acknowledgement, apology, memorialization and truth-telling) and guarantees of non-repetition (reforms to prevent future violations). The Framework will guide how different forms of reparations, including compensation amounts, are to be assessed for consideration by the State.

6. What about the KSh 2 billion that has been mentioned, and what support is KNCHR seeking from Parliament and the National Treasury?

The disbursement of these and any additional funds will be undertaken by the Executive arm of Government. KNCHR's role is to develop a framework that shall guide the process as well as furnish the Executive with a report that shall contain a list of eligible victims and survivors.

7. Why only 21 days to submit claims? Isn't that too short?

The call to submit information and documents by Friday, 3rd April 2026 is an initial data-collection window to inform the Framework. It helps KNCHR quickly map the scale and patterns of violations and update its existing database; it is not the only opportunity because reparations are a continuous process.

8. What happens after 3rd April? Will victims who come later be locked out?

No. The 3rd April date is for the first phase of data collection. KNCHR will continue to document cases in accordance with its mandate and will create further opportunities for victims and the public to be heard as the Framework is developed and implemented.

9. What is the timeline for KNCHR to submit its report on the Reparations Framework, and when might victims actually receive reparations?

KNCHR must submit its report containing the Reparations Framework to the President within sixty days from 6 March 2026. Actual payment of compensation and other reparations will follow once the Framework and any related laws or policies are adopted by the Government.

10. Who is considered a "victim of gross human rights violations" for this Framework?

A victim is any person, or their family, who has suffered harm because of a gross human rights violation, including during protests and demonstrations. This may include death, injury, torture or ill-treatment, sexual and gender-based violence, unlawful detention, enforced disappearance, or serious socio-economic loss linked to violations. The detailed criteria will be set out in the Framework.

11. Will people who lost property (shops, homes, vehicles, equipment) also be considered for reparations?

Loss or destruction of property is one of the harms that can be addressed through reparations. The Framework will explain how such losses will be assessed and what forms of redress may apply.

12. What documents do victims need to bring?

Victims should submit any documents that can support their case, such as P3 forms, medical reports, police OB numbers, post-mortem reports, court orders or other relevant records. These help KNCHR verify and classify cases.

13. What about people who never reported to police or went to hospital?

They are still encouraged to come forward and record their testimonies. While official records are useful, the Framework will provide for other ways of verifying such cases, including victims testimonies, witness statements and other credible information.

14. How are other institutions such as IPOA, the ODPP, the National Treasury and Parliament involved?

These institutions play complementary roles. IPOA and the ODPP are key for investigations and prosecutions, while the National Treasury and Parliament are central to budget approval and passing any legislation needed to implement the reparations programme.

15. How will victims and the public be involved in shaping the Framework?

KNCHR will hold public participation forums and targeted consultations with victims, communities and stakeholders. Details will be shared through public notices, the KNCHR website, social media, the media and community engagements. KNCHR will also utilize the NGAO structures to enhance the scope of people getting the KNCHR notices and updates.

16. How will you ensure marginalised groups (women, youth, persons with disabilities, informal settlements, rural communities) are not left out?

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KNCHR will deliberately map and reach areas and groups most affected, working with local partners and victim representatives as well as NGAO structures all across the country. Special efforts will be made to reach women, youth, persons with disabilities, informal settlements and rural communities.

17. Is KNCHR just implementing a political directive from the President?

No. KNCHR is acting on its constitutional and legal mandate, as affirmed by the High Court. The President's directive requiring a Framework supports and activates this existing mandate; it does not replace or override it.

18. How will KNCHR handle cases where victims were shot or injured during protests, but their deaths or injuries were officially recorded as "accidents" or unrelated causes?

Such cases will be examined carefully during verification. Where there are discrepancies between official records and the information received, KNCHR will review the evidence in line with its mandate to secure appropriate redress.

19. What about victims who fear reprisals from police or other powerful actors? How can they safely report and participate in this process?

Victims can use channels that offer more privacy, such as SMS, phone, email or the toll-free line, and can indicate any safety concerns when reporting. KNCHR will handle such information sensitively and take security considerations into account when planning follow-up.

20. How can people in areas where KNCHR has no physical office report their cases or participate in the process?

People in such areas can still use SMS, phone, email, WhatsApp and the toll-free line to report. KNCHR will also use outreach visits and work with community partners to reach those in remote and far flung locations.

21. Will the compensation exercise prejudice any matters that are pending in court?

No. The Framework is being designed to respect ongoing court processes and existing court orders. Any compensation or reparations measures will take into account, and not undermine, cases that are already before the courts.

22. Will perpetrators be held accountable, or is this only about compensation?

Reparations do not replace accountability. Investigations and prosecutions remain the responsibility of the relevant agencies, and KNCHR will continue to cooperate with them so that justice and accountability can accompany any reparations process.

23. What will be the basis or matrix for determining compensation?

The Framework will propose clear criteria to guide assessment of compensation, including factors such as the nature and severity of harm, circumstances of the violation and, where relevant, personal circumstances of the victim. This criteria will then guide the Executive arm of the government when dispensing the compensation.

24. How will KNCHR protect its independence from political interference during this process?

KNCHR is an independent constitutional commission and will strictly be guided by the Constitution, the law and the High Court's judgment. All its recommendations will be evidence-based and anchored in human rights principles, not political interests.

25. How will the Commission deal with false or exaggerated claims, and ensure fairness in verification?

All information and documents received will go through a verification process. Submitting false claims undermines genuine victims and may attract legal consequences under Kenyan law, so the public is strongly urged to provide truthful information only.

26. Will this process affect cases on the implementation of the TJRC Report where petitioners are seeking compensation?

No. The development of this Framework does not take away the right of parties to pursue remedies through the courts, including in matters relating to the TJRC Report. The Framework is intended to complement, not replace, existing judicial and policy processes on reparations.

27. Where can victims go to report or submit their claims?

Victims can reach the Commission Head Office through:

Official Website: www.knchr.org

Email: reparations@knchr.org

SMS: 22359

WhatsApp: 0798849871

Mobile: 0726610159

Toll-Free Line: 0800 720 627

Telephone: 020 3969000

They can also visit or contact the Regional Offices:

Central Regional Office, Nyahururu: AFC Building, Next to Nyahururu Law Courts ;
0710974302 / 0705982617

Coast Regional Office, Mombasa: 10th Floor Imaara Building, Dedan Kimathi Avenue , 0757
292932

Western Regional Office, Kisumu: 3 rd Floor-Reinsurance Plaza, Oginga Odinga Street ;
0746415714

North Rift Regional Office, Kitale: AFC Building, Opposite Mega Plaza ; 0708 271216 / 0786
236683

North Eastern Regional Office, Wajir: I-Mall Building, Airport Road; 0794 376 259 / 0794 375
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Isiolo Office: Ground Floor Shune Suites, County Area ; 0101500161

Garissa Office: IPOA House, Off Kismayu Road ; 0111517725

Kajiado Satellite Office: Huduma Center ; 0800 720 627